PAPER 2: CORPORATE AND OTHER LAWS (100 MARKS)

PART I– COMPANY LAW AND LIMITED LIABILITY PARTNERSHIP LAW (70 MARKS)

Objective

To develop an understanding of the legal provisions and acquire the ability to analyse and apply the laws in practical situations.

Contents

I **The Companies Act, 2013:** including important rules and drafting of notices, resolutions etc.–

1 Preliminary
2 Incorporation of Company and Matters Incidental thereto
3 Prospectus and Allotment of Securities
4 Share Capital and Debentures
5 Acceptance of Deposits by Companies
6 Registration of Charges
7 Management and Administration
8 Declaration and Payment of Dividend
9 Accounts of Companies
10 Audit and Auditors
11 Companies Incorporated Outside India

II **The Limited Liability Partnership Act, 2008 including important Rules**

PART II- OTHER LAWS (30 MARKS)

Objective

a To develop an understanding of the General Clauses Act.

b To develop an understanding of the rules for interpretation of statutes.

c To have basic understanding of the Foreign Exchange Management Act, 1999.

Contents

I **The General Clauses Act, 1897:** Important Definitions, Extent and Applicability, General Rules of Construction, Powers and Functionaries, Provisions as to Orders, Rules, etc. made under Enactments and Miscellaneous provisions.

2 **Interpretation of Statutes:** Rules of Interpretation of Statutes, Aids to Interpretation, Rules of Interpretation/Construction of Deeds and Documents.

3 **The Foreign Exchange Management Act, 1999:** Significant definitions and concepts of Current and Capital Account Transactions.

Note: *If any new legislation(s) is/are enacted in place of the existing legislation(s), the syllabus would include the corresponding provisions of such new legislation(s) with effect from a date notified by the Institute.*

The specific inclusion(s)/exclusion(s) in the various topics covered in the syllabus will be effected every year by way of Study Guidelines, if required.